

FEDERAL MARITIME COMMISSION

YAKOV KOBEL and VICTOR BERKOVICH,

Complainants,

v.

HAPAG-LLOYD AMERICA, INC., LIMCO
LOGISTICS, INC., and INTERNATIONAL
TLC, INC.,

Respondents.

Docket No. 10-06

JOINT REQUEST APPROVING
SETTLEMENT AGREEMENT AND
STAY OF ATTORNEY FEE
PROCEEDING AND REQUEST FOR
CONFIDENTIAL TREATMENT OF
SETTLEMENT AGREEMENT

I.

INTRODUCTION

Complainants and Respondent, Limco Logistics, have reached a settlement in this case and request approval of the settlement agreement and request a stay of the attorney fee provision as to only Limco Logistics pending the fulfillment of the settlement agreement by Limco.

This request is supported by the below authorities and fully meets the Commission's criteria for settlement agreements pursuant to 46 CFR 502.91 and 46 CFR 502.72(3).

Complainants and Limco have requested "confidential treatment of the settlement agreement" pursuant to Rule 91 and 46 CFR 502.5 (Rule 5).

Complainants and Limco Logistics request confidential treatment with respect to this settlement agreement with respect to disclosure to the general public except for disclosure to Respondent, International TLC.

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II.

APPROVAL OF SETTLEMENT AGREEMENT

When a settlement agreement contemplates dismissal of a pending case, the settlement agreement must be submitted with a motion to the Commission for determination as to whether the settlement appears to violate any law or policy to ensure that the settlement is free from fraud, duress, undue influence, mistake or any other defect which would render it unapproved. 46 CFR 502.72(3). The Commission looks to see if the settlement has a reasonable basis and reflects the careful consideration by the parties of such factors as it relates to the strengths of the parties case in light of the risk against the weight of continued litigation. APM Terminal NY Port Authority of NY&NJ 31 S.R.R. 623, 626 (FMC 2006) and Maher v. Port Authority of NY&NJ (Docket 08-03, October 12, 2016, p. 5). With respect to the specific payment amounts in the settlement, the Commission generally leaves such determinations to the parties who have negotiated the settlement, using their exercise of business judgment. Accord Craft Co. Ltd. v. Asia North American East 26 S.R.R. 1385, 1386-87 (ALJ 1994) Global Link Logistics, Docket No. 13-07 P. 9 (April 14, 2015).

In this case, the above agreement does not contravene public policy, is not the product of any fraud, duress, undue influence or mistake. Both parties to this agreement are represented by counsel. The parties desire to settle this case to end any further litigation and in particular the Complainants' claim for attorney's fees and any further litigation, including any appeals, and any further legal proceedings to enforce the reparations award already awarded.

III.

REQUEST FOR STAY REGARDING ATTORNEY FEES PROCEEDING

A reparations award in favor of Complainants and against Respondents, Limco and ITLC, jointly and severally in the sum of \$129,035.29 became final as of July 25, 2016. However, Complainants claim for attorney's fees against Respondents Limco and ITLC is still

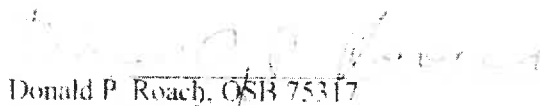
1 pending before the Commission. Complainants and Limco request that the proceedings
2 regarding Complainants' petition for attorney's fees against only Limco be stayed pending the
3 completion of the terms of the settlement agreement with Limco. Upon completion,
4 Complainants will file a motion to dismiss Complainants' complaint for attorney's fees as to
5 Limco only. Complainants preserve and will proceed with their petition for attorney's fees as
6 to Respondent TILCO.

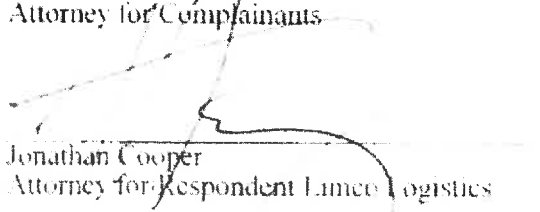
7 IV.

8 REQUEST FOR CONFIDENTIAL TREATMENT

9 As grounds for confidential treatment of this settlement agreement, this settlement
10 agreement specifically deals with payment made to resolve this claim against Limco Logistics
11 only. Complainants will comply with Rule 5 with respect to this confidential settlement.

12 Respectfully submitted this 27 day of March, 2017

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15 Donald P. Roach, OSB 75317
16 Attorney for Complainants

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18 Jonathan Cooper
19 Attorney for Respondent Limco Logistics
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